



CHAPTER 2.

An Act to provide for the amendment of enactments relating to the Supreme Court of Northern Ireland to correspond with alterations in county court jurisdiction made by the Parliament of Northern Ireland, and to make further provision as respects rules and orders relating to the said Supreme Court.

[17th December 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Section five of the Common Law Procedure Amendment Act, Ireland, 1870 (which provides for the removal from the High Court to the county court of actions of contract in which the amount claimed or remaining in dispute does not exceed fifty pounds) shall, as from the date on which any enactment of the Parliament of Northern Ireland comes into operation altering the amount by reference to which the jurisdiction of a county court in such actions is limited by section thirty-five of the Civil Bill Courts (Ireland) Act, 1851, have effect as if a reference to the last-mentioned amount as so altered were substituted for any reference to fifty pounds.

Amendment of High Court Acts to correspond with alterations in county court jurisdiction.
33 & 34 Vict. c. 109.
14 & 15 Vict. c. 57.

(2) Section two of the Civil Bill Courts (Ireland) Act, 1874 (which provides for the removal to the High Court from the county court of actions in which the title to land or hereditaments of greater annual value than thirty pounds comes in question) shall, as from the date on which any enactment of the Parliament of Northern Ireland comes into operation altering the amount by reference to which the jurisdiction of a county court in such actions is limited by section one of that Act, have effect as if a

37 & 38 Vict. c. 66.

reference to the last-mentioned amount as so altered were substituted for the reference to thirty pounds.

(3) As from the date on which any enactment of the Parliament of Northern Ireland comes into operation amending, so as to alter the jurisdiction thereby conferred, any provision conferring equity jurisdiction on a county court—

40 & 41 Vict.
c. 56.

- (a) any reference in Part II of the County Officers and Courts (Ireland) Act, 1877, to the jurisdiction conferred by that Part of that Act on a county court shall be construed as including a reference to the jurisdiction conferred by the said provision as so amended; and
- (b) the reference in section forty-five of that Act to the jurisdiction conferred upon the Lord Chief Justice of Northern Ireland by the said Part of that Act shall be construed as including a reference to the jurisdiction conferred upon him by section forty-three of that Act as amended by the foregoing provisions of this subsection.

In this subsection the expression "provision conferring equity jurisdiction on a county court" means any provision of the said Part II which confers jurisdiction on a county court and any provision of any subsequent enactment which confers jurisdiction on a county court and applies to that jurisdiction the provisions of the said Part II.

(4) No amendment made in any enactment by the foregoing provisions of this section shall affect any proceedings taken or had in any court before that amendment comes into operation, and any such proceedings may be continued as if the amendment had not been made.

Amendments
as to rules of
court, &c.

2.—(1) Any rule or order to which this section applies made after the commencement of this Act shall be laid before Parliament as soon as may be after it is made.

(2) If either House of Parliament, within the period of forty days beginning with the day on which any such rule or order is laid before it, resolves that the rule or order be annulled, it shall thereupon become void, without prejudice however to the validity of anything previously done thereunder, or to the making of a new rule or order.

(3) In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(4) Where any rule or order to which this section applies has been made before the commencement of this Act—

- (a) if, before the commencement of this Act, the rule or order has not been laid before Parliament in pursuance of section sixty-nine of the Supreme Court of Judicature

40 & 41 Vict.
c. 57.

Act (Ireland), 1877, the foregoing provisions of this section shall apply thereto in lieu of the provisions of the said section sixty-nine, as if the rule or order had been made immediately after the commencement of this Act; and

- (b) if, before the commencement of this Act, the rule or order has been so laid and no address has been presented to His Majesty under the said section sixty-nine, but the hundred days within which such an address may be presented have not expired, subsections (2) and (3) of this section shall apply to the rule or order as if it had been made and laid before Parliament immediately after the commencement of this Act, and the provisions of the said section sixty-nine shall cease to apply thereto.

(5) Section one of the Rules Publication Act, 1893 (which ^{56 & 57 Vict.} requires notice to be given of a proposal to make statutory rules) ^{c. 66.} shall not apply to rules or orders to which this section applies made after the commencement of this Act.

(6) This section applies to the following rules and orders, namely—

- (a) rules of court made, whether under section sixty-one of the Supreme Court of Judicature Act (Ireland), 1877, or otherwise, by the authority for the time being empowered to make rules of court under the said section sixty-one, and on the recommendation of the persons on whose recommendation rules of court are made under that section;
- (b) rules and orders made under sections seven and thirty-nine of the said Act (which relate to the practice in certain proceedings before the Chancery judge);
- (c) orders made by the Governor of Northern Ireland in Council or the Lord Chief Justice of Northern Ireland under section sixty-two of the said Act (which relates to circuits and assizes);
- (d) orders made under section eighty-four of the said Act (which relates to court fees).

3.—(1) This Act may be cited as the Supreme Court (Northern Ireland) Act, 1942.

Short title,
interpretation
and repeals.

(2) References in this Act to any other enactment shall, unless the context otherwise requires, be construed as references to that enactment as amended by any subsequent enactment (whether of the Parliament of the United Kingdom or the Parliament of Northern Ireland) or Order in Council.

(3) The enactments set out in the Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULE.

Section 3.

ENACTMENTS REPEALED.

Session and Chapter	Short Title	Extent of Repeal
40 & 41 Vict. c. 57.	The Supreme Court of Judicature Act (Ireland), 1877.	In section seven, the words "All rules" to "Act provided"; in section sixty-one, the words from "All rules", where they first occur, to "Act provided"; in section sixty-two, the words from "All Orders" to "Act provided"; section sixty-nine; in section eighty-four, the words from "All orders" to "Act provided".
20 & 21 Geo. 5. c. 45.	The Criminal Appeal (Northern Ireland) Act, 1930.	In subsection (1) of section sixteen, the words from "and, for the purposes" to "Parliament."

Printed by NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 1d. net

(P. 1034)